

BEFORE THE PROCUREMENT REVIEW COMMITTEE BALOCHISTAN
PUBLIC PROCUREMENT REGULATORY AUTHORITY, QUETTA

PRC APPEAL NO. 56/2026

M/S Sultan Mehmood & Co.

Through its Representative Khan Son of Sultan Muhammad having CNIC as 54400-5947561-1 Resident of District Quetta having cell No. 0321-8020887.

...Appellant

VERSUS

1. Government of Balochistan, through its Chief Secretary, Civil Secretariat, Zarghoon Road Quetta.
2. The Secretary to the Government of Balochistan, Communication Works, Physical Planning & Housing Department, Civil Secretariat, Zarghoon Road Quetta.
3. The Executive Engineer (Roads), District Sohbat Pur.
4. The Grievance Redressal Committee, through its Chairman, Quetta.
5. M/S Naqeebullah Jalalzai & Brothers, M/S Jamil Kakar Construction (JV).

...Respondents

Quorum

1. Mr. Habib Ur Rehman Jamot.....Chairman PRC
2. Mr. Mubashir Ali Khan (FCIPS).....Member PRC
3. Engr. Junaid Shah.....Member PRC
4. Engr. Iftikhar Ahmed Mir.....Technical Member PRC
5. Mr. Abdul Wahab Bulledi.....Private Member PRC

APPEAL UNDER RULE-56-A OF THE BALOCHISTAN PUBLIC PROCUREMENT RULES, 2014.

For the Appellant:

Barrister Muhammad Ayaz Khan Kakar.

For the Respondents Nos. 01 to 04.

Jahangeer Ahmed, Executive Engineer / PD

For the Respondents Nos. 05.

Muhammad Ishaq Nasir.

DECISION

Dated: 13-04-2026

Engr. Junaid Shah – Member PRC. This appeal, preferred under Rule 56 of the Balochistan Public Procurement Rules, 2014, calls into question the legitimacy of the technical disqualification of the Appellant in respect of Tender No. TSE-252601941953.

BRIEF FACTS

The material facts, largely undisputed, are as follows:

1. The said tender was floated by the Respondent No. 3, for the construction and rehabilitation of B/T Road from Bhandd to Hairdin, District Sohbat Pur (Name of the scheme changed to Construction of Bypass Road with the estimated approved cost of 975,443,868/-.
2. The method of procurement was national competitive bidding using single stage two envelope bidding procedure and the least cost evaluation criteria.

3. The Appellant, registered as a C-A category Firm with the PEC, has challenged its declaration of ineligibility on ground of being considered blacklisted, during eligibility assessment. The Respondents have defended the evaluation, asserting adherence to the BPP Rules, 2014.

Timeline:

- i. Technical Bid Opening: 29th January 2026
 - ii. Technical Evaluation Publishing: 16th February 2026
 - iii. Financial Bid Opening: 17th February 2026
 - iv. Complete Evaluation Publishing: 17th February 2026
 - v. Filing of e-Grievance on ePPS: 23rd February 2026
 - vi. GRC Decided Grievance on 25th of Feb 2026
 - vii. Filing of Appeal in PRC dated: 18th March 2026
4. The GRC reports to have convened its meeting on 24th Feb 2026 and issued its decision on 25th Feb 2026, upholding the Procurement Committee's evaluation. However, the Appellant denies having received the copy of the said decision, whereas the status of the said grievance on ePPS portal states it to be pending before the CRC as of date of final hearing.
5. Receiving no response from the GRC, the Appellant has invoked the jurisdiction of this Committee.

APPELLANT'S CONTENTION

6. That the impugned Evaluation Report dated 21.02.2026, declaring the Appellant as "Non-Eligible," is based on a legally untenable ground. The sole reason cited for rejection is an alleged "Debar by ADB vide letter No. OAI/02.13/25-0431-RS dated 13-10-2025." The Appellant submits that:
- i. The bidding criterion prescribed by Respondent No. 3 itself, under Serial No. 2 of the Eligibility Factors, explicitly required only that "the bidding firm must not be blacklisted by any Procuring Agency in Pakistan."
 - ii. The Appellant has never been blacklisted by any Procuring Agency within Pakistan, a fact duly declared on his company letterhead.
 - iii. Debarment by the Asian Development Bank (ADB) a foreign financial institution, does not fall within the definition of the said criterion.
7. That the Respondents have willfully mixed two distinct legal concepts "blacklisting" and "debarment" to the prejudice of the Appellant. The Public Procurement Regulations, 2017 issued by the BPPRA explicitly define:
- i. "Blacklisting" as an administrative penalty disqualifying a person or entity from participating in any government procurement for a given period; and
 - ii. "Debarment" as a state of being legally excluded from participating in all types of procurement proceedings of the procuring department for a given period.
8. The Appellant submits that the legal scope and effect of these two penalties are materially different and the Respondent No. 3 cannot be permitted to ignore this statutory distinction to justify an illegal exclusion.



9. That the Asian Development Bank (ADB) is not, and cannot be treated as, a "Procuring Agency" within the meaning of the Balochistan Public Procurement Rules, 2014. The ADB is a multilateral financial institution that provides loans and development assistance. Even assuming, for the sake of argument, that the Appellant was blacklisted by ADB (which he was not), such blacklisting would still not satisfy the criterion set by Respondent No. 3, which is expressly limited to blacklisting by "any Procuring Agency in Pakistan." The Respondent No. 3 had no authority to expand this criterion unilaterally.
10. That it has been observed that the time for technical bid opening was defined as 29th January, 2026 at 10:00 AM whereas tender evaluation date was 16th February, 2026 but the same was uploaded on 21-02-2026 as per contention of the appellant. It has also been observed that some of the documents i.e. bidder eligibility / qualification report page No. 51 of the appeal reflects the date of opening as 29-02-2026.
11. That the decision of Grievance Redressal Committee (GRC) was to be made within 15 days of filing of complaint and in next 3 days the decision of GRC was to be communicated to the appellant but in the instant case the GRC decided the fate of complaint on 25-03-2026 deciding the complaint beyond the prescribed period does not have any legal sanctity.
12. That the conduct of Respondent No. 3 offends the fundamental principles of procurement under Rule 4 of the BPPR 2014 as his exclusion on an extraneous ground not contained in the bidding documents has reduced competition, potentially harmed the public exchequer and created an unfair environment. Relying on settled principles of procurement law affirmed by superior courts, the Appellant contends that bidders should not be excluded on minor or extraneous deviations, and even his ADB debarment (which is denied) is an extraneous matter not mentioned in the tender criteria. Furthermore, Section 24A of the General Clauses Act, 1897 requires statutory powers to be exercised reasonably and fairly, whereas Respondent No. 3 has exercised his powers to defeat the very purposes of procurement.
13. That the Appellant apprehends, that Respondent No. 3 during pendency of complaint has issued work order in favor of the private respondent in hasty manner without deciding the complaint filed by the appellant. The appellant has also placed on record the screenshot of his grievance application from BPPRA website which shows the complaint of the appellant still pending before the grievance Redressal committee.
14. In light of the above contentions, the Appellant prays that this Committee may:
- i. Declare the impugned Technical Evaluation Reports dated 16-02-2026 whereby the appellant has been evaluated as non-eligible and financial evaluation report dated 17th February, 2026 to be illegal, unjust and without any legal force.
 - ii. Restrain Respondent No. 3 from issuing any Letter of Acceptance and work Order for the project with the name of Construction and Rehabilitation of B/T Road from Bhandd to Hairdin District Sohbat Pur (Name of Scheme Changed to Construction of Bypass Road Sohbat Pur) to any third party.
 - iii. Direct Respondent No. 3 to reinstate the eligibility of the appellant thus resultantly allowing him to participate further in following stages / process of bidding for procurement of Construction and Rehabilitation of B/T Road from Bhandd to

Hairdin District Sohbat Pur (Name of Scheme Changed to Construction of Bypass Road Sohbat Pur)

- iv. Direct the technical bid of the appellant be considered as eligible as the appellant fulfills the eligibility criteria set by respondent No. 3 and consequently responsive and by doing so respondent No. 3 be directed to open the financial bid of the appellant in accordance with law the contract be awarded to lowest bidder.
- v. Grant any other relief.

RESPONDENT'S CONTENTION

15. That the procurement process was conducted in full compliance with the Balochistan Public Procurement Rules, 2014 and all applicable guidelines. No violation of any statutory provision has been demonstrated by the Appellant.
16. That the present appeal is devoid of merit, based on suppression of material facts and deserves dismissal with costs. The Appellant has approached this Committee with unclean hands, having deliberately concealed the fact that his grievance was already adjudicated upon by the duly constituted Grievance Redressal Committee (GRC) vide order dated 25.03.2026.
17. That the Procurement Committee was authorized under Rule 34 of BPPR 2014 to tailor evaluation criteria taking into consideration relevant experience, capability, financial position, and any other factor not inconsistent with the Rules, in order to secure public exchequer money and ensure quality and efficiency of public works. The evaluation criteria were applied uniformly to all bidders.
18. That the technical bid was opened on 16.02.2026, and the Appellant was declared technically non-responsive on the sole lawful, justified grounds that his firm stands debarred by the Asian Development Bank (ADB) for a period of six (6) years with effect from 25.09.2025 to 25.09.2031 on account of proven fraudulent practices, in accordance with Rule 19(4) of the Public Procurement Rules, 2004:

ADB Debarment of Firm - M/s Sultan Mahmood & Co was debarred by the Asian Development Bank (ADB) vide letter dated 13.10.2025, for a period of six (6) years with effect from 25.09.2025 to 25.09.2031, on account of fraudulent practices."
19. That main contention of the respondents was that the Appellant fraudulently concealed his ADB debarment while submitting his undertaking on company letterhead declaring that he was not blacklisted. The Appellant knew, or ought to have known, that debarment by an international organization on grounds of fraudulent practices is a material fact that would affect his eligibility. His failure to disclose this fact constitutes bad faith and vitiates his entire participation.
20. That the respondent contended that the debarment has not been defined under BPPR Rules 2014 and evaluation process was carried out in accordance with Rule 19(4) of the Public Procurement Rules, 2004 (Federal), which explicitly treats debarment by a foreign country, international organization, or other foreign institution as equivalent to blacklisting for the purpose of participation in public procurement proceedings in Pakistan and states that:

"A bidder who has been declared blacklisted or debarred by a foreign country,



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international organization or other institutions shall be treated as blacklisted and debarred from participating in any public procurement proceedings or entering into public contract for such period as declared by the foreign country, international organization or any other foreign institutions."

21. That the Appellant's distinction between "blacklisting" and "debarment" is a self-serving, artificial, and legally untenable distinction. Respondent No. 3 contends:

- i. The Asian Development Bank (ADB) is a recognized international organization.
- ii. The substance of the action between the terms "blacklisting" and "debarment" is the same under procurement law, which is exclusion from public procurement.
- iii. The Appellant's reliance on definitions in the Public Procurement Regulations, 2017 is misplaced, as those definitions do not override the specific provision contained in Rule 19(4), which expressly treats foreign debarment as equivalent to blacklisting.

22. That the Letter of Acceptance has already been issued to the financial lowest successful bidder and The procurement process has substantially progressed and any interference at this stage would cause irreparable harm to public interest and the rights of third parties who participated in good faith.

23. That the principles of natural justice and fair competition were fully adhered to. All bidders were subjected to the same evaluation criteria. The Appellant was not singled out. He was disqualified because of a disability he fraudulently concealed. Equity does not aid those who come with unclean hands.

24. In light of the above contentions, the Respondent No. 3 prays that this Committee may:

- i. Dismiss the appeal as being devoid of merit and based on suppression of material facts;
- ii. Award costs in favor of Respondent No. 3 and against the Appellant for wasting the precious time of this Committee and the parties;
- iii. Declare that the evaluation of the Appellant as "Non-Eligible" was lawful, justified and in accordance with Rule 19(4) of the Public Procurement Rules, 2004 and the terms of the bidding documents;
- iv. Confirm the award of the contract to the successful lowest financial bidder;

ISSUES FOR DETERMINATION

25. Based on the pleadings and arguments by the parties, the following issues arise for determination by this Committee:

- Applicability of the public procurement legal framework.
- Whether the Grievance Redressal Committee has decided the fate of the complaint beyond the prescribed period of limitation?
- Whether the Appellant fraudulently concealed material facts?
- Whether the procedural irregularities in the evaluation report vitiate the process?

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FINDINGS OF THE COMMITTEE

26. This Committee has examined the available record, including the bidding documents, evaluation reports, minutes of the GRC, material presented by the learned counsels in support of their arguments and the oral and written submissions of the parties. Our analysis proceeds issue-wise.

Issue No. 1: Applicability of the public procurement legal framework.

27. Since the provisions on the subject matter between the BPP Rules 2014 and the PPR 2004 are somewhat contradictory, therefore it is imperative to ascertain the applicable law. Reliance in this regard is made on the following provisions of the Constitution of the Islamic Republic of Pakistan:

- i. Article 142(c): "A Provincial Assembly shall, and Parliament shall not, have power to make any law with respect to any matter not enumerated in the Federal Legislative List."
- ii. Article 149: "The executive authority of the Province shall extend to the matters with respect to which the Provincial Assembly has power to make laws."
- iii. Article 144: "Parliament shall not make any law with respect to any matter in the Provincial Concurrent List, except in the situations provided in Article 143, and a Provincial Assembly shall not make any law with respect to any matter in the Federal Legislative List."

28. Public procurement is not enumerated in the Federal Legislative List (Fourth Schedule). Consequently, only a Provincial Assembly can legislate on public procurement matters within its territory. Since the Provincial Assembly has the power to make all the provincial Procuring Agencies operate within that domain and the federal rules have no constitutional basis to override or supplant the provincial regulatory framework.

29. Applying the doctrine of implied repeal, this Committee finds that the Balochistan Public Procurement Rules, 2014, being later in time and enacted by the constitutionally competent legislature, must prevail over the Public Procurement Rules, 2004 (federal) to the extent of any inconsistency. Furthermore, under the doctrine of manner and form, the federal rules cannot operate in the provincial sphere on a residuary subject where Parliament lacks legislative competence. Consequently, Rule 19(4) of the federal rules has no application to procurements conducted by provincial Procuring Agencies in Balochistan.

Issue No. 2: Whether the Grievance Redressal Committee has decided the fate of the complaint beyond the prescribed period of limitation?

30. The Committee holds That the complaint was filed before the Grievance Redressal Committee (GRC) on 23.02.2026 through the E-PPS system. At the time of hearing of the instant appeal, the complaint status still reflected as pending. However, the Official Respondents, in their reply, have stated that the grievance Redressal Committee (GRC) decided the matter on 25.02.2026. Although the said decision was rendered within the prescribed statutory period of fifteen (15) days in terms of Rule 56 of the Balochistan Public Procurement Rules, 2014, the fact that the

complaint continued to appear as pending at the time of hearing reflects administrative negligence and lack of due diligence on the part of the Grievance Redressal Committee. Such inconsistency undermines transparency and creates ambiguity in the grievance redressal process.

Issue No. 3: Whether the Appellant fraudulently concealed material facts?

31. The basic eligibility criteria prescribed by Respondent No. 3 included, inter alia, **Factor No. 7**, which required the bidder to furnish an affidavit confirming that it: (i) has no conflict of interest; (ii) has not been blacklisted; (iii) has not been involved in litigation; (iv) has not exhibited non-performance during the last five (05) years; and (v) has not failed to sign any contract. Against this factor, the only document required was an **attested affidavit**, which the Appellant duly submitted in compliance with the bidding requirements.
32. Since the Appellant fulfilled the documentary requirement exactly as prescribed, no disqualification could lawfully arise on this ground. Notably, the bidding documents did not require disclosure of any debarment proceedings by foreign or international organizations, including the Asian Development Bank (ADB). The scope of disclosure was confined strictly to the contents of the prescribed affidavit.
33. However, the Appellant was declared non-responsive on the ground, as reflected in the assessment report, that the “contractor hide information regarding Asian Development Bank proceedings and did not mention correct information.” This reasoning is fundamentally flawed and unsustainable in law.
34. It is a settled principle of procurement law that a bidder cannot be penalized for non-disclosure of information that was never required under the bidding documents. The Procuring Agency cannot, after bid submission, expand the scope of disclosure obligations or introduce new criteria to the detriment of a bidder. Any such action is arbitrary and violative of the principles of transparency and fair competition.
35. In the present case, the alleged non-disclosure pertains to a matter that was not part of the eligibility requirements. Therefore, attributing concealment to the Appellant is misconceived. The Appellant cannot be said to have suppressed any material fact when no such disclosure was ever mandated. Consequently, the disqualification of the Appellant on the basis of alleged concealment of ADB-related information is without lawful justification

Issue No. 4: Whether the procedural irregularities in the evaluation report vitiate the process?

36. Without delving into an elaborate factual examination regarding the authenticity of the signatures or the timing of the document's generation, the Committee is of the considered view that such determination is not essential for the adjudication of the present matter. The Appellant has already succeeded on the principal substantive ground and the disqualification has been held to be legally untenable. In these circumstances, irrespective of whether the Evaluation Report is vitiated by procedural irregularities or otherwise, the substantive illegality underlying the disqualification is, in itself, sufficient to warrant setting aside the impugned Evaluation Report.

37. We have been informed by the Executive Engineer that twelve (12) firms participated in the bidding process, out of which only the Private Respondent was declared qualified under the evaluation criteria, and consequently, the work order was issued in its favour. However, a perusal of the record reveals that most of the participating firms were declared ineligible on grounds such as non-submission of CDR, green challan, and requisite evidence of completion of similar projects. The disqualification of a substantial number of bidders on such technical grounds, without adequate clarification or opportunity for rectification, gives rise to a reasonable apprehension regarding the fairness and transparency of the bidding process. In these circumstances, the evaluation process appears to have been conducted in a restrictive manner, potentially undermining the principles of open competition and equal opportunity as envisaged under the procurement framework. Therefore, the resultant award of contract, based on such a limited and questionable evaluation, cannot be considered to be free from arbitrariness or procedural infirmity.

ORDER

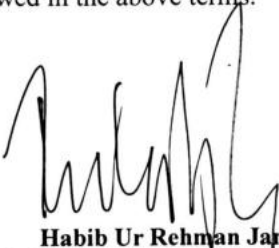
For the reasons recorded in the foregoing findings, the Procurement Review Committee hereby orders as follows:

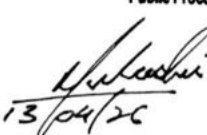
I. The disqualification of the Appellant on the basis of the ADB debarment order dated 13.10.2025 is hereby declared legally unsustainable and without legal merit.

II. The impugned Evaluation Report dated 17.02.2026, to the extent it declares the Appellant as "Non-Eligible" on the alleged ground of concealment of ADB debarment, is hereby declared illegal and of no legal effect.

III. The Procuring Agency is directed to re-evaluate the technical bid of the Appellant strictly in accordance with the Balochistan Public Procurement Legal Framework and expeditiously proceed with the procurement process to its logical conclusion.

V. The appeal is accordingly allowed in the above terms.


Habib Ur Rehman Jamot
Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)


13/04/26
Mubashir Ali Khan (FCIPS)

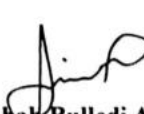
Member
Procurement Review Committee
BPPRA


Engr. Junaid Shah

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Engr. Iftikhar Ahmed Mir

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